

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-11

AENEAS EXPORTING LLC

CLAIMANT

V.

**HONEYBEE INTERNATIONAL, INC., AND
ALL AMERICA SHIPPING.**

RESPONDENTS

VERIFIED ANSWER OF RESPONDENTS

Respondents Honeybee International Forwarding, dba Honeybee International, Inc., (“Honeybee”) and All California Auto Parts Inc., erroneously sued herein as All America Shipping (“All America”), who is specially appearing, by their counsel, hereby answer the above-captioned Verified Complaint filed by Aeneas Exporting LLC (“Aeneas” or “Claimant”) as follows:

1. Paragraphs 1 and 2 need no response.
2. On information and belief, deny the allegations contained in paragraph 3.
3. On information and belief, deny the allegations contained in paragraph 4.
4. In response to paragraph 5, Honeybee International Inc. admits that it is a dba of a corporation named Honeybee International Forwarding, formed and existing under the laws of the State of California with its primary place of business at 7815 Somerset Blvd., Paramount, CA

90723 and that its email address is honeybeinc@aol.com. California Auto Parts Inc. alleges that it is a corporation formed and existing under the laws of the State of California and used All America Shipping as its email address; it admits that its primary place of business is located at 867 Alpha St., Duarte, CA 91010, but denies that its email address is honeybeinc@aol.com.

5. On information and belief, Respondents admit the allegations of paragraph 6.

6. In response to paragraph 7, Honeybee admits that it is a non-vessel operating common carrier and ocean transportation intermediary and that the FMC has personal jurisdiction over it, but denies that it is an ocean common carrier and an ocean freight forwarder; All America denies that it is an ocean common carrier, non-vessel operating common carrier, ocean freight forwarder or ocean transportation intermediary and that the FMC has personal jurisdiction over it.

7. In response to paragraph 8, Honeybee denies that on or about November 10, 2021, it entered in a contract with Aeneas Exporting ("Aeneas") to ship nine vehicles to Libya. The contract was to ship three vehicles to Libya. All America denies that it was a party to the bill of lading. Honeybee and All America also deny that Exhibit A is a limited power contract. Its title is Limited Power of Attorney/Authorization Letter with Honeybee and not with All America. Honeybee and All America admit that the email attached as Exhibit B shows a shipping rate of \$5,250, but that was for the vehicles shipped under HLBUI841803 as confirmed by the initial part of the email. Honeybee and All America deny that Aeneas delivered nine vehicles to All America; three vehicles were delivered to Honeybee and six vehicles and a motorcycle were delivered to All Ameerica.

8. In response to paragraph 9, Honeybee and All America admit the allegations of that paragraph.

9. In response to paragraph 10, Honeybee admits that on or about December 1, it raised the rate to \$5,600.00 as a result of purchasing a shipment guarantee of the containers from the ocean carrier, Hapag- Lloyd, for \$400.00. However, it passed only \$350.00 of that cost to Claimant. The new rate was for the remaining six vehicles that were shipped in the second and third shipments. Claimant agreed to the increase on December 1.

10. In response to paragraph 11, Honeybee and All America are uncertain as to which Respondent Claimant is referring to in this paragraph. Neither Honeybee nor All America recall that Claimant told either of them that HAPAG LLOYD gives quotes for every three months and there is no other reason to raise the rate, and so denies that allegation on a lack of information and belief. Moreover, Exhibit E does not support the allegation. Claimant's allegation that it "had his vehicles at the warehouse and had no coerced to accept the forced new rate" is unintelligible and Honeybee and All America deny that allegation on lack of information and belief. Claimant's allegation that it "must pay for transportation to another warehouse and pay Respondent \$\$3,000.00 storage fees" is also unintelligible and Honeybee and All America deny that allegation on lack of information and belief.

11. In response to paragraph 12, Honeybee and All America admit that Honeybee shipped the remaining six vehicles under the alleged Booking numbers and in the alleged numbered containers. They deny that "Bill of Ladings" are attached as Exhibit E. Honeybee and All America admit that added to the second and third shipments were shipment guarantee charges of \$700.00 and port congestion charges of \$720.00.

12. In response to paragraph 13, Honeybee and All America deny the allegations of that paragraph. The "Congestion Surcharge Destination" or Port Congestion Surcharge was included



in Honeybee's Invoice/Debit Notes dated 18 Feb 22.

13. In response to paragraph 14, Honeybee and All America deny that allegation on lack of information and belief. Moreover, Exhibit F is not a Quotation of HAPAG LLOYD, as Claimant has alleged.

14. In response to paragraph 15, Honeybee and All America deny that allegation on lack of information and belief. Moreover, they deny any fraud. Honeybee did not receive the Congestion Surcharge Destination invoices from Hapag-Lloyd until February 10, 2022.

15. In response to paragraph 16, Honeybee and All American deny that either "knows from beginning that the Congestion Surcharge Destination Fees are presented within the quote from HAPAG-LLOYD." Hapag-Lloyd did not invoice Honeybee for those fees until February 10, 2022. Moreover, they deny any fraud and deny the remaining allegations of the paragraph based upon a lack of information and belief.

16. In response to paragraph 17, Honeybee and All America admit that on or about January 28, Claimant delivered seven vehicles to be shipped to Libya. However, the delivery of the vehicles was done without agreement by either Honeybee or All America and after Hapag-Lloyd's decision not to ship to Lybia from the Port of Los Angeles-Long Beach.

17. In response to paragraph 18, Honeybee and All America deny the allegations of that paragraph.

18. In response to paragraph 19, Honeybee and All America admit that Claimant was informed that it must move its vehicle from the warehouse and to pay \$3,500.00 for storage fees, which was a discount of \$700.00 from the usual rate. Exhibit G is not a Wire as Claimant has alleged.



19. In response to paragraph 20, Honeybee and All America admit that Claimant was informed that if it did not remove the vehicles, that it would continue to charged the daily rate of \$140.00.

20. In response to paragraph 21, Honeybee and All America admit that Claimant paid the storage charges of \$3,500 and moved the vehicles to Houston. However, they deny the remaining allegations of this paragraph. Upon information and belief, the reason was that Hapag-Lloyd no longer would carry cargo from the Port of Los Angeles/Long Beach to Lybia.

21. In response to paragraph 22, Honeybee and All America deny the allegations based upon a lack of information and belief. Exhibit H is not a Dispatch Invoice as Claimant alleges.

CAUSES OF ACTION

COUNT I: VIOLATION OF 46 U.S.C.A. §41102(c)

22. Honeybee and All America reallege and incorporate by reference paragraphs 1 through 21 of this Answer, as if fully set forth.

23. In response to paragraph 24, Honeybee and All America admit the allegations of this paragraph.

24. In response to paragraph 25, Honeybee and All America deny each and every allegation of this paragraph.

25. In response to paragraph 26, Honeybee and All America deny each and every allegation of this paragraph.

26. In response to paragraph 27, Honeybee and All America deny each and every allegation of this paragraph.

27. In response to paragraph 28, Honeybee and All America deny each and every

allegation of this paragraph.

COUNT III: FRAUD

[NO COUNT II IS ALLEGED IN THE COMPLAINT]

28. Honeybee and All America reallege and incorporate by reference paragraphs 1 through 27 of this Answer, as if fully set forth.

29. In response to paragraph 29, Honeybee and All America deny each and every allegation of this paragraph.

30. In response to paragraph 30, Honeybee and All America deny each and every allegation of this paragraph.

COUNT IV: COERCION

31. Honeybee and All America reallege and incorporate by reference paragraphs 1 through 30 of this Answer, as if fully set forth.

32. In response to paragraph 31, Honeybee and All America deny each and every allegation of this paragraph.

33. In response to paragraph 32, Honeybee and All America deny each and every allegation of this paragraph.

DAMAGES

34. Honeybee and All America reallege and incorporate by reference paragraphs 1 through 33 of this Answer, as if fully set forth.

35. In response to paragraph 33, Honeybee and All America deny each and every allegation of this paragraph.

DEFENSES

36. The Federal Maritime Commission does not have personal jurisdiction over All America.

37. Claimant has failed to state a claim upon which relief can be granted either as to Honeybee or as to All America.

38. Claimant's alleged injury was the result of the actions of Claimant and/or its agents.

39. Respondents' action were reasonable under the circumstances.

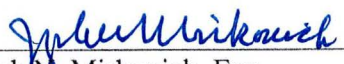
40. Claimant's claims are barred in whole or in part by reason of ratification, agreement, or consent to the alleged conduct of Respondents.

41. Respondents reserve the right to assert any additional affirmative defenses.

WHEREFORE, Honeybee and All America request that the Complaint be dismissed in the entirety with costs and attorney's fees to be awarded to them.

Dated: April 21, 2022

Respectfully submitted.
RUSSELL, MIRKOVICH & MORROW



Joseph N. Mirkovich, Esq.
Russell, Mirkovich & Morrow
One World Trade Center, Suite 1660
Long Beach, California 90831-1660
Telephone: (562) 436-9911
Fax: (562) 4336-1897
Email: jmirkovich@rumlaw.com
Attorneys for Respondents Honeybee
International Forwarding dba Honeybee
International, Inc. and All California Auto
Parts Inc., erroneously sued herein as All
America Shipping

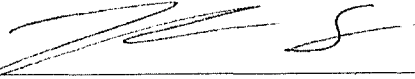
VERIFICATION

Reda Aljabi, being first duly sworn on oath, deposes and says that he is the Chief Executive Officer of Honeybee International Forwarding dba Honeybee International, Inc. and of All California Auto Parts Inc., erroneously sued herein as All America Shipping, and the person who signed the foregoing Answer; that he has read the foregoing Answer and that the facts stated therein are true of his knowledge, except as to those matters that are therein stated on information and belief, and concerning those matters, he believes to be true.



Reda Aljabi

Subscribed and sworn before me by Reda Aljabi, proved to me on the basis of satisfactory evidence to be the person who appeared before in, Walnut, Los Angeles County, California, this 23 day of April, 2022.



Notary Public for the State of California
County of Los Angeles

My Commission expires: Feb 14 2023



Also see Attachment

ACKNOWLEDGMENT

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

State of California

County of Los Angeles

On 04/23/22 before me, Kailin Zhang "Notary Public"
(insert name and title of the officer)

personally appeared Reda Mohamed Zohar Aljabi,
who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/~~are~~
subscribed to the within instrument and acknowledged to me that he/~~she/they~~ executed the same in
his/~~her/their~~ authorized capacity(ies), and that by his/~~her/their~~ signature(s) on the instrument the
person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Signature



(Seal)



Verification

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 25th day of April, 2022, a true and correct copy of the foregoing Answer was served via electronic mail on:

Anis A. Houssein (Shipping.manager@aeneasexporting.com)



JOSEPH N. MIRKOVICH